

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Benjamin Wurtzel	Team: Squad #06	CCRB Case #: 201702771	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☒ O.L. ☒ Injury
Incident Date(s) Tuesday, 04/04/2017 1:10 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 10/4/2018	Precinct: 24
Date/Time CV Reported Tue, 04/04/2017 3:20 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 04/10/2017 11:16 AM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Joshua Johnson	04455	949144	024 PCT
2. POM Bryant Pineda	27382	928969	024 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Joshua Johnson	Force: Police Officer Joshua Johnson used physical force against § 87(2)(b)	A . Exonerated
B . POM Bryant Pineda	Force: Police Officer Bryant Pineda used physical force against § 87(2)(b)	B . Unfounded
C . POM Joshua Johnson	Off. Language: Police Officer Joshua Johnson made remarks to § 87(2)(b) based upon his perceived sexual orientation.	C . Unsubstantiated
D . POM Bryant Pineda	Off. Language: Police Officer Bryant Pineda made remarks to § 87(2)(b) based upon his perceived sexual orientation.	D . Unsubstantiated

Case Summary

On April 6, 2017, Sergeant Michael Gonzalez of the 24th Precinct filed this complaint with IAB on behalf of § 87(2)(b) where it received original log number 2017-12075. On April 10, 2017, this case was referred to the CCRB for investigation.

On April 4, 2017, at approximately 1:00 a.m., § 87(2)(b) was in the back of a cab that was pulling up to his destination at § 87(2)(b) in Manhattan. § 87(2)(b) and the cab driver were arguing over payment when § 87(2)(b) exited the cab while it was in motion and entered the destination building. Police Officers Bryant Pineda and Joshua Johnson of the 24th Precinct observed § 87(2)(b) exit the moving vehicle and pursued him inside of the location.

Police Officers Bryant and Johnson immediately instructed § 87(2)(b) to place his hands behind his back and he did not comply. Police Officer Johnson forcefully brought § 87(2)(b) to the ground, causing him to hit his abdomen on a hard surface, resulting in a bruise (**Allegation A**). Police Officer Bryant allegedly pushed § 87(2)(b) during this time (**Allegation B**). The officers then placed § 87(2)(b) in handcuffs. During this time, both officers allegedly referred to § 87(2)(b) as a "faggot," with one of the officers calling § 87(2)(b) a "cat step faggot," (**Allegations C and D**). § 87(2)(b) was charged with § 87(2)(b) (**Board Review 01**). [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Mediation, Civil and Criminal Histories

This case was not suitable for mediation due to § 87(2)(b) arrest. As of July 18, 2017, § 87(2)(b) has not filed a Notice of Claim with the City of New York in regards to this complaint (**Board Review 03**). [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) (**Board Review 05**).
- Police Officer Johnson has been a member of the NYPD for seven years and has had three former CCRB allegations within two complaints and no substantiated allegations filed against him. § 87(2)(g)
- Police Officer Bryant has been a member of the NYPD for 16 years and has had five CCRB allegations within three complaints and two substantiated allegations filed against him. § 87(2)(g)
 - In CCRB case number 200601591, Police Officer Pineda conducted an improper strip search and received a command discipline.
 - In CCRB case number 201313585, Police Officer Pineda improperly questioned a civilian and received no disciplinary action.

Potential Issues

§ 87(2)(b) provided a statement regarding this incident via video teleconference from Rikers Island. § 87(2)(b) was sent medical record release forms and a verification form to sign. These

were received by § 87(2)(b) via certified mail but § 87(2)(b) never returned the forms to the CCRB. Therefore, medical records could not be obtained.

§ 87(2)(b) and § 87(2)(b) employees of § 87(2)(b) were identified as witnesses to this investigation and were mailed letters at their place of employment. Phone numbers for § 87(2)(b) and § 87(2)(b) were provided by their supervisor, § 87(2)(b), however neither § 87(2)(b) nor § 87(2)(b) has responded to numerous phone calls. § 87(2)(b) answered on one occasion but terminated the call shortly after. Therefore, the investigation was unable to obtain telephone statements from the two civilian witnesses to this incident.

Findings and Recommendations

Allegation A – Force: Police Officer Joshua Johnson used physical force against § 87(2)(b)

Allegation B – Force: Police Officer Bryant Pineda used physical force against § 87(2)(b)

On April 6, 2017, Sergeant Michael Gonzalez of the 24th Precinct filed this complaint with IAB on behalf of § 87(2)(b). On June 1, 2017, § 87(2)(b) provided a statement to the CCRB via video teleconference (**Board Review 08**). On June 26, 2017, § 87(2)(b) provided a telephone statement to the CCRB (**Board Review 09**).

§ 87(2)(b) stated that he was sitting in the rear seat of a cab driven by § 87(2)(b) that was parked in front of § 87(2)(b) in Manhattan. § 87(2)(b) was visiting a friend who resided at this address. § 87(2)(b) did not have money on him at the time and assured § 87(2)(b) that his friend would pay the fare. § 87(2)(b) exited the cab and entered the lobby at this time. § 87(2)(b) was unhappy with § 87(2)(b) for exiting the vehicle. § 87(2)(b) stated that he was in the lobby attempting to reach his friend on the desk phone when Police Officers Pineda and Johnson entered the lobby. § 87(2)(b) had been unable to contact his friend. As the officers approached him, § 87(2)(b) walked towards the nearby elevator bank to see if his friend was coming downstairs.

The officers told § 87(2)(b) to turn around and he refused to do so, stating that he “was not cooperating with an unjust arrest.” The officers did not speak to § 87(2)(b) but placed their hands on each of § 87(2)(b) arms. § 87(2)(b) folded his arms in front of his chest and repeatedly asked the officers why he was being arrested. § 87(2)(b) had difficulty explaining the details of how the officers brought him to the ground but stated that Police Officer Johnson pushed him one time in the back, causing him to trip backwards into a counter and that Police Officer Pineda pushed him a second time, causing him to fall to the ground. § 87(2)(b) stated that these actions resulted in bruising to the left side of his abdomen.

§ 87(2)(b) stated that § 87(2)(b) exited his cab while he was still driving and before the fare had been paid. Police Officer Johnson stepped out of a police vehicle behind him shortly after and pursued § 87(2)(b) into § 87(2)(b). § 87(2)(b) spoke with Police Officer Pineda outside and then proceeded into the building with him. § 87(2)(b) observed the passenger attempt to run outside of the building but stated that Police Officer Pineda blocked his

way. Police Officer Johnson confronted § 87(2)(b) who attempted to push him. Police Officer Johnson raised his arm at the same time and pushed the passenger, causing him to fall. Once on the ground, Police Officer Johnson placed the passenger in handcuffs. The passenger moved his body but Police Officer Johnson was able to place him in handcuffs.

Police Officer Pineda was interviewed at the CCRB on June 19, 2017 (**Board Review 10**). Police Officer Johnson was interviewed at the CCRB on June 30, 2017 (**Board Review 11**).

Police Officer Johnson and Police Officer Pineda provided a consistent account of their interaction with § 87(2)(b). Police Officer Johnson noted that when he entered the building, he observed § 87(2)(b) crouching behind laundry machines in a room adjacent to the lobby. Police Officer Johnson asked § 87(2)(b) to step into the lobby and was speaking with him in that location when Police Officer Pineda entered the building.

§ 87(2)(b) expressed to the officers that he wanted § 87(2)(b) arrested for not paying his fare. Police Officer Johnson grabbed ahold of § 87(2)(b) left wrist but § 87(2)(b) pulled his wrist away in a forceful manner. § 87(2)(b) ran down an adjacent hallway and Police Officer Johnson followed him, issuing him numerous instructions to stop. § 87(2)(b) abruptly stopped, turned around to face Police Officer Johnson and attempted to punch him in the head with his right fist. § 87(2)(b) did not strike Police Officer Johnson, who responded by pushing § 87(2)(b) one time in the chest with both of his hands, causing him to fall backwards over a bench. Once on the ground, § 87(2)(b) attempted to place his hands under his body but Police Officer Johnson was able to place him in handcuffs within ten seconds. Police Officer Bryant did not push § 87(2)(b) at any time.

Police Officer Johnson was shown a copy of the Threat, Resistance or Injury Worksheet (TRI), and was asked to account for a checked box indicating that a civilian was injured due to an ‘unintentional action by MOS,’ (**Board Review 07**). Police Officer Johnson stated that his push of § 87(2)(b) was intentional but the resulting trip over the bench and injury were not.

Police Officer Pineda § 87(2)(g) denied that he pushed § 87(2)(b) or participated in bringing him to the ground.

According to Patrol Guide Procedure 221-02 a person is guilty of resisting arrest when they intentionally attempt to prevent a police officer from effecting an authorized arrest. Furthermore, a member of service may use force in order to gain compliance, control, or custody of an uncooperative subject (**Board Review 06**).

§ 87(2)(g)
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§ 87(2)(g)

It is therefore recommended that **Allegation A be exonerated.**

§ 87(2)(g)

is recommended that **Allegation B be unfounded.**

Allegation C – Offensive Language: Police Officer Joshua Johnson made remarks to § 87(2)(b) based upon his perceived sexual orientation.

Allegation D – Offensive Language: Police Officer Bryant Pineda made remarks to § 87(2)(b) based upon his perceived sexual orientation.

§ 87(2)(b) alleged that both officers referred to him as “faggot” while he was on the ground and being placed in handcuffs. § 87(2)(b) further stated that one of these officers called him a “cat step faggot.” § 87(2)(b) denied hearing the officers make any comments to § 87(2)(b) that could be considered “mean” or “rude.” § 87(2)(b) did not hear the officers say anything to § 87(2)(b) beyond asking him why he did not pay for his cab fare.

Police Officer Pineda denied making the above statements and denied hearing his partner make these statements. Police Officer Pineda did not know that § 87(2)(b) was gay. Police Officer Johnson denied making the above statements and denied hearing Police Officer Pineda make these statements. Police Officer Johnson stated that § 87(2)(b) had told him that he was visiting his boyfriend in the building when he first approached to speak to him.

§ 87(2)(g)

It is therefore recommended that **Allegations C and D be unsubstantiated.**

Squad: 6

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer:

Title/Signature

Print

Date